EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 6504/13
Kate and Nedeljko STOJAKOVIĆ
against Croatia

The European Court of Human Rights (Second Section), sitting on 12 January 2016 as a Committee composed of:

Paul Lemmens, *President,*
Ksenija Turković,
Jon Fridrik Kjølbro, *judges,*
and Abel Campos, *Deputy Section Registrar,*

Having regard to the above application lodged on 3 January 2013,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicants,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. The applicants, Ms Kate Stojaković and Mr Nedeljko Stojaković, are Serbian nationals, who were born in 1948 and 1967 respectively and live in Karlovac. They were represented before the Court by Mr M. Žugić, a lawyer practising in Zagreb.

2. The Croatian Government ("the Government") were represented by their Agent, Ms Š. Stažnik.

3. The applicants complained that the State authorities had not complied with their obligation to identify and punish those who had killed their close relatives. They further complained under Article 6 of the Convention about the outcome of the civil proceedings against the State in which they had sought damages in connection with the killing of their relatives. The applicants also invoked Article 11 of the Convention.

4. By a partial decision of 14 April 2014, the Court decided to give notice to the Government of the applicants' complaint concerning the

alleged lack of an effective investigation into the killing of their relatives, under the procedural aspect of Article 2 of the Convention. It also declared the remainder of the application inadmissible.

5. On 15 September 2014 the Government submitted to the Registry their observations on the admissibility and merits of the application. These were forwarded on 24 September 2014 to the applicants, who were invited to submit observations in reply by 5 November 2014.

6. On 4 November 2014 the applicants' representative informed the Court that the applicants had not complained about the lack of an effective investigation into the deaths of their relatives. He stated that the applicants' complaint was not about the criminal investigation, but about the civil proceedings.

THE LAW

7. The Court notes that the complaint relating to the civil proceedings has already been declared inadmissible by the Section president acting as a single judge, and that that decision is final. The Court considers that, in light of the applicants' statement, there is nothing to examine as regards the criminal proceedings. In the light of the foregoing, and in the absence of any special circumstances regarding respect for the rights guaranteed by the Convention or its Protocols, the Court, in accordance with Article 37 § 1 (a) of the Convention, considers that it is no longer justified to continue the examination of the application.

8. Accordingly, the case should be struck out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 4 February 2016.

Abel Campos
Deputy Registrar

Paul Lemmens
President